

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1461

By: Bergstrom of the Senate

and

Kendrix of the House

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9 An Act relating to education; amending 70 O.S. 2021,
10 Section 23-105, as amended by Section 1, Chapter 296,
11 O.S.L. 2023 (70 O.S. Supp. 2025, Section 23-105),
12 which relates to the Oklahoma Educational Television
13 Authority; extending sunset date; updating statutory
14 language; providing an effective date; and declaring
15 an emergency.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 70 O.S. 2021, Section 23-105, as
18 amended by Section 1, Chapter 296, O.S.L. 2023 (70 O.S. Supp. 2025,
19 Section 23-105), is amended to read as follows:

20 Section 23-105. There is hereby re-created, to continue until
21 ~~July 1, 2026~~ July 1, 2031, in accordance with the provisions of the
22 Oklahoma Sunset Law, Section 3901 et seq. of Title 74 of the
23 Oklahoma Statutes, a body corporate and politic to be known as the
24 "Oklahoma Educational Television Authority", and by that name the
25 Authority may sue and be sued, and plead and be impleaded. The

1 Authority is hereby constituted an instrumentality of the state, and
2 the exercise by the Authority of the powers conferred by this
3 ~~article~~ section for the planning, construction, operation, and
4 maintenance of educational television facilities shall be deemed and
5 held to be an essential function of the state.

6 The Oklahoma Educational Television Authority shall consist of
7 thirteen (13) members, including the President of the University of
8 Oklahoma, the President of Oklahoma State University, the ~~State~~
9 Superintendent of Public Instruction, the Chancellor of ~~the~~ The
10 Oklahoma State ~~Regents for~~ System of Higher Education, the president
11 of one of the state-supported four-year colleges to be chosen by the
12 presidents of ~~this group of~~ said institutions, the president of one
13 of the state-supported two-year colleges to be chosen by the
14 presidents of ~~this group of~~ said institutions, and seven additional
15 members to be appointed by the Governor with the advice and consent
16 of the Senate, to serve seven-year terms.

17 The appointed members shall have been residents of the state for
18 at least five (5) years preceding the date of their appointment.
19 The appointed members shall include one member from each of the
20 congressional districts, and any remaining members shall be
21 appointed from the state at large. However, when congressional
22 districts are redrawn each member appointed prior to July 1 of the
23 year in which such modification becomes effective shall complete the
24 current term of office, and appointments made after July 1 of the

1 year in which such modification becomes effective shall be based on
2 the redrawn districts. Appointments made after July 1 of the year
3 in which such modification becomes effective shall be from any
4 redrawn districts which are not represented by an authority member
5 until such time as each of the modified congressional districts are
6 represented by an authority member. A majority of the appointed
7 members shall be actively engaged in the profession of education.
8 Each appointed member of the Authority, before entering upon the
9 duties of the member, shall take the oath provided for by Section 1
10 of Article XV of the Oklahoma Constitution ~~of the State of Oklahoma~~.

11 The seven original members appointed by the Governor shall
12 continue in office for terms expiring on June 30, 1954; June 30,
13 1955; June 30, 1956; June 30, 1957; June 30, 1958; June 30, 1959;
14 and June 30, 1960, respectively. The terms of each of the original
15 appointed members shall be designated by the Governor, and ~~said~~ such
16 members shall serve for their appointed terms and until their
17 respective successors shall be appointed and qualified. The
18 successor of each appointed member shall be appointed for a term of
19 seven (7) years, except that any person appointed to fill a vacancy
20 shall be appointed to serve only for the unexpired term ~~in said~~ of
21 such vacancy.

22 The Authority shall elect from ~~the~~ its membership ~~of the~~
23 ~~Authority~~ a chair, a ~~vice-chair~~ vice chair, and a ~~secretary-~~
24 ~~treasurer~~ secretary treasurer. Any ~~such~~ officers elected by the

1 Authority on or after July 1, 1984, shall be appointed to serve a
2 term of one (1) year. Seven members of the Authority shall
3 constitute a quorum, and the vote of seven members shall be
4 necessary for any action taken by the Authority. No vacancy in the
5 membership of the Authority shall impair the right of a quorum to
6 exercise all the rights and perform all the duties of the Authority.
7 The Authority shall meet at least quarterly.

8 The members of the Authority shall not be entitled to
9 compensation for their services, but each member shall be reimbursed
10 for travel expenses incurred in performing official duties in
11 accordance with the provisions of the State Travel Reimbursement
12 Act. No liability or obligation shall be incurred by the Authority
13 beyond the extent to which monies shall have been provided pursuant
14 to the authority of this ~~article~~ section.

15 SECTION 2. This act shall become effective July 1, 2026.

16 SECTION 3. It being immediately necessary for the preservation
17 of the public peace, health, or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval.

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21 COMMITTEE REPORT BY: COMMITTEE ON ADMINISTRATIVE RULES, dated
22 04/08/2026 - DO PASS.
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